



FLORIDA DEPARTMENT OF  
Environmental Protection

Bob Martinez Center  
2600 Blair Stone Road  
Tallahassee, Florida 32399-2400

**Ron DeSantis**  
Governor

**Jeanette Nuñez**  
Lt. Governor

**Shawn Hamilton**  
Secretary

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December 10, 2021

Jacqueline Schmehl  
Arcosa Aggregates  
5160 Vermont Rd  
Marianna, FL 32448 7473

**RE: Facility ID: FLR05I752-001**  
North Florida Rock LLC  
County: Jackson

Dear Permittee:

The Florida Department of Environmental Protection has received and processed your *Notice of Intent to Use Multi-Sector Generic Permit for Stormwater Discharge Associated with Industrial Activity* (NOI) and the accompanying processing fee. This letter acknowledges that:

- your NOI is complete;
- your processing fee is paid-in-full; and
- you are covered under the *Multi-Sector Generic Permit for Stormwater Discharge Associated with Industrial Activity* (MSGP).

Your project identification number is **FLR05I752-001**. Please include this number on all future correspondence to the department regarding this permit.

This letter is **not** your permit; however, this letter does serve as **verification of permit coverage**. A copy of the permit language is available online at <https://floridadep.gov/Water/Stormwater> or by contacting the NPDES Stormwater Notices Center. Your facility falls under Sector(s) **J** of the MSGP.

Your permit coverage becomes effective **December 13, 2021** and will expire **December 12, 2026**. To terminate your coverage prior to this expiration date, you must file a *National Pollutant Discharge*

*Elimination System (NPDES) Stormwater Notice of Termination*, DEP Form 62-621.300(6). To renew your coverage beyond the expiration date, you must submit a new NOI and processing fee to the department no later than two days before coverage expires.

Until your permit coverage is terminated, modified, or revoked, you are authorized to discharge stormwater from your facility to surface waters in accordance with the terms and conditions of the MSGP. Three key conditions of the MSGP are:

- implementing your stormwater pollution prevention plan (SWPPP);
- retaining the records required by the permit (including your SWPPP) at your facility; and
- conducting your required monitoring.

### **Required Monitoring:**

#### ***Analytical Monitoring***

Analytical samples of your stormwater discharge(s) must be collected and analyzed at least once each calendar quarter after a qualifying rain event during the periods of January through March, April through June, July through September, and October through December during years **two** and **four** of your permit cycle for the parameters specified in your Sector(s).

Analytical monitoring must be conducted in accordance with the following schedule:

- Year **two monitoring period** begins January 1, 2022 and ends December 31, 2022
- Year **four monitoring period** begins January 1, 2024 and ends December 31, 2024

The samples must be analyzed by a laboratory that has been certified by the Department of Health Environmental Laboratory Certification Program (DOH ELCP). At the end of the monitoring year, you must average your quarterly Discharge Monitoring Report (DMR) results and record the quarterly average on an annual DMR form. If there is no stormwater discharged from your facility after a qualifying rain event during a calendar quarter, you must still complete and sign a DMR form for that quarter indicating "No Discharge" by checking the box at the top of the form.

#### ***Compliance Monitoring***

Your facility may also be subject to numerical effluent limitations and **annual compliance monitoring** requirements. Facilities that have runoff from wet deck storage areas, phosphate fertilizers manufacturing, asphalt or roofing emulsions production, cement manufacturing, or coal pile storage are subject to numeric stormwater effluent limitations. If any of these activities occur at your facility, a compliance monitoring DMR must be completed and submitted for monitoring results obtained in each calendar year required by your MSGP permit.

#### ***DMR Submission Requirements***

The permittee shall use the electronic DMR system approved by the department (EzDMR) and shall electronically submit the completed DMR forms using the DEP Business Portal. This system is available online at: <https://prodenv.dep.state.fl.us/DepEzDMR>, unless the permittee has a waiver from the department in accordance with 40 CFR 127.15. These requirements were adopted on November 16, 2017 in Rule 62-621.250, F.A.C. is available online at <https://www.flrules.org/gateway/ChapterHome.asp?Chapter=62-621>. Reports shall be submitted to the department by March 31st of the year following your monitoring period or year. For example, analytical monitoring results for 2014 would be due no later than March 31, 2015.

If you have any questions concerning this Acknowledgment Letter, please contact the NPDES Stormwater Notices Center at (866) 336-6312 or [NPDES-stormwater@dep.state.fl.us](mailto:NPDES-stormwater@dep.state.fl.us).

Sincerely,

NPDES Stormwater Program  
Florida Department of Environmental Protection

### **NOTICE OF RIGHTS**

This action is final and effective on the date filed with the Clerk of the Department unless a petition for an administrative hearing is timely filed under Sections 120.569 and 120.57, F.S., before the deadline for filing a petition. On the filing of a timely and sufficient petition, this action will not be final and effective until further order of the department. Because the administrative hearing process is designed to formulate final agency action, the hearing process may result in a modification of the agency action or even denial of the application.

#### **Petition for Administrative Hearing**

A person whose substantial interests are affected by the department's action may petition for an administrative proceeding (hearing) under Sections 120.569 and 120.57, F.S. Pursuant to Rules 28-106.201 and 28-106.301, F.A.C., a petition for an administrative hearing must contain the following information:

- (a) The name and address of each agency affected and each agency's file or identification number, if known;
- (b) The name, address, and telephone number of the petitioner; the name, address, and telephone number of the petitioner's representative, if any, which shall be the address for service purposes during the course of the proceeding; and an explanation of how the petitioner's substantial interests are or will be affected by the agency determination;
- (c) A statement of when and how the petitioner received notice of the agency decision;
- (d) A statement of all disputed issues of material fact. If there are none, the petition must so indicate;
- (e) A concise statement of the ultimate facts alleged, including the specific facts that the petitioner contends warrant reversal or modification of the agency's proposed action;
- (f) A statement of the specific rules or statutes that the petitioner contends require reversal or modification of the agency's proposed action, including an explanation of how the alleged facts relate to the specific rules or statutes; and
- (g) A statement of the relief sought by the petitioner, stating precisely the action that the petitioner wishes the agency to take with respect to the agency's proposed action.

The petition must be filed (received by the Clerk) in the Office of General Counsel of the Department at 3900 Commonwealth Boulevard, Mail Station 35, Tallahassee, Florida 32399-3000, or via electronic correspondence at [Agency\\_Clerk@dep.state.fl.us](mailto:Agency_Clerk@dep.state.fl.us). Also, a copy of the petition shall be mailed to the applicant at the address indicated above at the time of filing.

#### **Time Period for Filing a Petition**

In accordance with Rule 62-110.106(3), F.A.C., petitions for an administrative hearing by the applicant and persons entitled to written notice under Section 120.60(3), F.S., must be filed within 14 days of receipt of this written notice. Petitions filed by any persons other than the applicant, and other than those entitled to written notice under Section 120.60(3), F.S., must be filed within 14 days of publication of the notice or within 14 days of receipt of the written notice, whichever occurs first. The failure to file a petition within the appropriate time period shall constitute a waiver of that person's right to request an administrative

determination (hearing) under Sections 120.569 and 120.57, F.S., or to intervene in this proceeding and participate as a party to it. Any subsequent intervention (in a proceeding initiated by another party) will be only at the discretion of the presiding officer upon the filing of a motion in compliance with Rule 28-106.205, F.A.C.

### Extension of Time

Under Rule 62-110.106(4), F.A.C., a person whose substantial interests are affected by the department's action may also request an extension of time to file a petition for an administrative hearing. The department may, for good cause shown, grant the request for an extension of time. Requests for extension of time must be filed with the Office of General Counsel of the Department at 3900 Commonwealth Boulevard, Mail Station 35, Tallahassee, Florida 32399-3000, or via electronic correspondence at [Agency\\_Clerk@dep.state.fl.us](mailto:Agency_Clerk@dep.state.fl.us), before the deadline for filing a petition for an administrative hearing. A timely request for extension of time shall toll the running of the time period for filing a petition until the request is acted upon.

### Mediation

Mediation is not available in this proceeding.

### Judicial Review

Once this decision becomes final, any party to this action has the right to seek judicial review pursuant to Section 120.68, F.S., by filing a Notice of Appeal pursuant to Florida Rules of Appellate Procedure 9.110 and 9.190 with the Clerk of the Department in the Office of General Counsel (Station #35, 3900 Commonwealth Boulevard, Tallahassee, Florida 32399-3000) and by filing a copy of the Notice of Appeal accompanied by the applicable filing fees with the appropriate district court of appeal. The notice must be filed within 30 days from the date this action is filed with the Clerk of the Department.

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**Receipt for Submission**

For:  
**Jacqueline Schmehl**

Facility ID: **FLR05I752**

Facility Address: **5160 Vermont Rd Marianna, FL 32448 7473**

**- Multi-Sector Generic Permit for Stormwater Discharge Associated with Industrial Activity (MSGP)**

COUNTY: **Jackson**

The department acknowledges receipt of your Notice of Intent (NOI) to use NPDES Multi-Sector Generic Permit for Stormwater Discharge Associated with Industrial Activity (MSGP). The Acknowledgement Letter, a copy of your NOI and the Generic Permit are attached.

Please note that for sites discharging to an MS4, the Operator must send a copy of the NOI or the acknowledgement letter within 7 calendar days of receipt to the operator of the MS4. If applicable, Quarterly and Annual Discharge Monitoring Reports (DMRs) must be submitted using the department's [Electronic DMR System \(EzDMR\)](#).

If you have any questions concerning this e-mail, please contact the NPDES Stormwater Notices Center at (866) 336-6312 or [NPDES-stormwater@dep.state.fl.us](mailto:NPDES-stormwater@dep.state.fl.us).

Attachments: Notice of Intent - MSGP, Acknowledgement Letter, Multisector Generic Permit Rule